

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

Court of Appeal Case No:
CA (PHC) 0039/2022

Provincial High Court of Monaragala
Case No: 06/2019

Magistrate's Court of Bibila Case No:
40092

1. Rathnayaka Mudiyanseelage Niluka
Hemanthi,
2. Sam Wilson Loku Ketagodalage Ashoka
Madduma Kumarihamy,

Both of at "Swashakthi", Hewelwela, Bibila.

Petitioners

Vs.

K.M. Wijesinghe,
Galagodawatta, Diwiyapola,
Nannapurawa, Bibila.

Respondent

AND BETWEEN

1. Rathnayaka Mudiyanseelage Niluka
Hemanthi,
2. Sam Wilson Loku Ketagodalage Ashoka
Madduma Kumarihamy,

Both of at "Swashakthi", Hewelwela, Bibila.

Petitioners-Petitioners

Vs.

K.M. Wijesinghe,
Galagodawatta, Diwiyapola,
Nannapurawa, Bibila.

Respondent- Respondent

AND NOW BETWEEN

1. Rathnayaka Mudiyanseelage Niluka
Hemanthi,

2. Sam Wilson Loku Ketagodalage Ashoka
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Both of at “Swashakthi” Hewelwela, Bibila.

Petitioners-Petitioners-Petitioners

Vs.

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Galagodawatta, Diwiyapola,
Nannapurawa, Bibila.

Respondent-Respondent- Respondent

Before: **Damith Thotawatte, J.**
K.M.S. Dissanayake, J.

Counsels: Keerthi Thilakarathne with Chanaka Ekanayake for the Petitioners-
Petitioners-Petitioners.
Amila Perera instructed by Chathuri Samarasinghe for the
Respondent – Respondent- Respondent.

Written submissions
tendered on: 05.06.2025 by Respondent-Respondent-Respondent
28.10.2025 by Petitioners- Petitioners-Petitioners.
09.04.2026 by Respondent-Respondent-Respondent.
(Judgment delivered based on Written Submissions as agreed on
10.02.2026)

Judgment Delivered: 23.06.2026

Introduction

The present appeal has been preferred by Rathnayaka Mudiyanseelage Niluka Hemanthi and Sam Wilson Loku Ketagodilage Ashoka Madduma Kumarihamy, described in the petition of Appeal as the Petitioners-Petitioners-Petitioners (hereinafter sometimes referred to as the “Appellants” as this is an appeal and the party preferring the appeal is properly described as the Appellant rather than the Petitioner) against the order dated 15.11.2021 delivered by the learned High Court Judge of the High Court of the Uva Province holden at Monaragala in Revision Application No. 06/2019, whereby the learned High Court Judge dismissed the revision application preferred by the Appellants and affirmed the order dated 22.03.2019 made by the learned Magistrate of Bibile in Case No. 40092, exercising jurisdiction under Part VII of the Primary Courts’ Procedure Act, No. 44 of 1979 (hereinafter sometimes referred to as the “Act”).

Factual Matrix

The dispute concerns a roadway claimed by the Appellants to be the sole means of access to their residence situated at Hewelwela, Bibile. The Appellants who are mother and daughter contends that they and their predecessors in title had continuously used the said roadway from about the year 1973 and asserted an entitlement to continue such use as a right of way.

According to the Appellants, the roadway extends from the Bibile–Badulla main road towards their residence. They alleged that the Respondent obstructed their use of the roadway, thereby giving rise to a dispute affecting land and creating a situation likely to result in a breach of the peace.

The Respondent disputed the Appellants’ claim and maintained that the relevant portion of the roadway traversed land belonging to him and that the Appellants possessed no legal entitlement to use the same. The Respondent further contended that the Appellants' assertions were in substance founded upon a claim of servitude and title, matters falling outside the limited jurisdiction conferred by Section 66 of the Act.

Progression of Litigation

Proceedings before the Magistrate's Court

The Appellants instituted proceedings before the Magistrate's Court of Bibile under Section 66(1)(b) of the Primary Courts' Procedure Act by way of a private information alleging a dispute affecting land.

The learned Magistrate conducted an inquiry and considered, *inter alia*, survey plans, title documents, police records and the oral and documentary material tendered by the parties. Upon conclusion of the inquiry, the learned Magistrate by order dated 22.03.2019 dismissed the information and declined to grant the relief sought by the Appellants.

Proceedings before the Provincial High Court

Being dissatisfied with the said determination, the Appellants invoked the revisionary jurisdiction of the High Court of Monaragala in Revision Application No. 06/2019.

The principal complaint advanced before the High Court was that the learned Magistrate had failed to properly appreciate the nature of the dispute and had wrongly rejected the Appellants' claim notwithstanding the existence of a dispute affecting land and a threatened breach of the peace.

After hearing the parties, the learned High Court Judge, by order dated 15.11.2021, dismissed the revision application and affirmed the order of the learned Magistrate, holding that no basis had been established warranting interference in revision with the impugned order.

The Appellants have now preferred the present appeal seeking, *inter alia*, to set aside the order of the learned High Court Judge and obtain relief with regards to the alleged wrongful obstruction of the roadway.

Grounds of instant appeal

Although several grounds have been formulated in the Petition of Appeal, the submissions of learned Counsel for the Appellants reveal that the appeal substantially turns on two principal contentions:

- a) That both the learned Magistrate and the learned High Court Judge failed to appreciate that the dispute disclosed a forcible obstruction or dispossession falling within the ambit of Section 66 and therefore erred in refusing relief.
- b) That both courts improperly embarked upon an inquiry concerning title, ownership and servitude rights, matters which lie outside the jurisdiction conferred by Part VII of the Primary Courts' Procedure Act.

Analysis

It is well settled that the jurisdiction conferred by Section 66 of the Primary Courts' Procedure Act is a special jurisdiction of a preventive, summary and provisional character, the primary object of which is the preservation of public peace in circumstances where a dispute affecting land threatens or is likely to occasion a breach of the peace. As recognized in *Velupillai v. Sivanathan*¹, *Punchi Nona v. Padumasena and Others*² and the authorities considered therein, the Court exercising such jurisdiction is not engaged in the final adjudication of title, servitudinal rights or other competing proprietary claims, which remain matters for determination by a competent civil court. Rather, the Court is empowered only to make such provisional determinations as may be necessary for the maintenance of the peace pending the final determination of the parties' civil rights in the appropriate forum.

The contention that both the learned Magistrate and the learned High Court Judge failed to appreciate that the dispute disclosed a forcible obstruction or dispossession within the ambit of Section 66 of the Primary Courts' Procedure Act cannot be accepted. The existence of a dispute affecting land and a threatened breach of the peace is sufficient only to invoke the jurisdiction of the Primary Court under Section 66. It does not, without more, entitle a party to relief. The learned Magistrate was nevertheless required to determine whether the Appellants had established a legally recognizable entitlement to the disputed right and whether the requirements of the relevant statutory provisions had been satisfied. Having found against the Appellants on those matters, the learned Magistrate declined to grant relief, and the learned High Court Judge found no basis for revisionary intervention. The present complaint is therefore directed not at any failure to appreciate the scope of Section 66, but at the conclusions reached by the learned Magistrate upon the facts and

¹ (1993) 1 Sri L.R. 123

² (1994) 2 Sri L.R. 117

evidence before Court. Such a complaint does not disclose an error warranting interference in an appeal from the exercise of revisionary jurisdiction.

The Appellants contend that the courts below improperly investigated questions of title and servitude. However, a careful examination of the record, as reflected in the submissions before this Court, reveals that the Appellants themselves advanced their case on the footing that they had acquired and enjoyed a right of way over the disputed roadway from 1973. The very foundation of their claim was therefore the existence of a servitude over the disputed land.

The position advanced by the Appellants does not appear to be entirely consistent. On the one hand, the Appellants assert that they and their predecessors in title have used the disputed roadway since 1973 as a right of way to their premises, thereby advancing a claim founded upon a servitude. On the other hand, they also maintain that a portion of the roadway leading from the Bibile–Badulla main road traverses land owned by them. The submissions further acknowledge that the learned Magistrate considered these positions to be contradictory, namely that the Appellants were simultaneously claiming a right of way over the roadway while asserting ownership of the land through which the roadway runs. Whilst the Appellants appear to suggest that different portions of the roadway traverse different parcels of land, including land owned by them, State land, and land claimed by the Respondent, this appears not to have been established with any degree of certainty. The legal difficulty remains that a servitude necessarily presumes the existence of a servient tenement belonging to another. Accordingly, insofar as the Appellants seek to establish a servitude over the disputed roadway whilst at the same time asserting ownership of the land through which that roadway passes, their position is not free from inconsistency. In the circumstances, this Court is unable to fault the learned Magistrate and the learned High Court Judge for treating the Appellants’ case as involving mutually inconsistent assertions regarding the juridical basis upon which their claimed right to use the roadway is founded.

This Court must bear in mind that the learned High Court Judge was exercising revisionary jurisdiction, the function of which is not to re-hear the dispute as though sitting in appeal, but rather to examine whether the impugned order is vitiated by illegality, procedural irregularity, jurisdictional error, manifest injustice, or other exceptional circumstances warranting intervention. Having considered the matter in that context, the learned High Court Judge found no illegality, impropriety, jurisdictional defect, or miscarriage of justice in the determination of the learned Magistrate that would justify the exercise of

revisionary powers. In the absence of such exceptional circumstances, interference in revision was plainly unwarranted.

Having examined the submissions advanced before this Court, I am unable to identify any material misdirection on the part of the learned High Court Judge. The Appellants' grievances are directed primarily against the factual conclusions reached by the learned Magistrate and affirmed by the High Court. Such matters do not, without more, justify appellate interference with the exercise of revisionary jurisdiction.

Accordingly, I find no basis upon which this Court may properly interfere with the order of the learned High Court Judge.

Conclusion

For the foregoing reasons, this Court is of the view that the learned High Court Judge correctly exercised revisionary jurisdiction and properly declined to interfere with the order of the learned Magistrate of Bibile.

Accordingly, the order dated 15.11.2021 of the learned Judge of the High Court of Monaragala in Revision Application No. 06/2019 is affirmed.

The appeal is dismissed with costs fixed at Rs. 50,000/- to be paid by the Appellants to the Court.

Judge of the Court of Appeal

K.M.S. Dissanayake, J.

I agree

Judge of the Court of Appeal